EXHIBIT 32

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA

KATHLEEN MOLLER	*	**CIVIL ACTION NO. 24-0228-WBV-DPC**
	*	
VERSUS	*	**JUDGE WENDY B. VITTER**
	*	
MARTIAN SALES, INC; JOPEN, LLC, a Texas limited liability company; JOHNSON FOODS, LLC, a Wyoming limited liability company; LP IND., LLC, a Wyoming limited liability company; CAG HOLDINGS, LLC, a Wyoming limited liability company; RMH HOLDINGS, INC., a Wyoming corporation; ABC INSURANCE COMPANY and John Does 1-4.	*	**MAGISTRATE DONNA PHILLIPS CURRAULT**

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JOPEN, LLC'S RESPONSES AND OBJECTIONS
TO PLAINTIFF'S REQUESTS FOR ADMISSION

TO: Plaintiff, Kathleen Moller, by and through her attorneys of record, Nelson W. Wagar, III, Sarah Wagar Hickman, Wagar Hickman, LLP, 1401 West Causeway Approach, Mandeville, Louisiana and Michael Cowgill, Tamara J. Williams, mctlaw, 1605 Main Street, Suite 710, Sarasota, Florida 34236.

Defendant JOpen, LLC, pursuant to the Federal Rules of Civil Procedure, responds to Plaintiff Kathleen Moller's Requests for Admission as follows:

GENERAL OBJECTIONS

1. JOpen objects to the Requests to the extent that they are vague, ambiguous, overbroad, unduly burdensome, oppressive, not relevant to the subject matter of this action, and not reasonably calculated to lead to the discovery of admissible evidence.

2. JOpen objects to the Requests to the extent that they are contradicted by, inconsistent with, or impose on JOpen any obligations in excess of the requirements of the Federal Rules of Civil Procedure.

JOpen objects to this Request on the ground that it is argumentative to the extent the Request assumes any kratom product that JOpen distributes is a "supplement." JOpen further objects to the phrases "United States' supplement industry" and "industry standard" as vague and ambiguous; it is unclear to what "supplement industry" and "industry standard" this Request refers. Subject to these objections, JOpen denies this Request.

REQUEST FOR ADMISSION NO. 7:

Admit that JOPEN customers have a right to expect that the company has conducted an evaluation into the safety of its kratom products before products are placed in interstate commerce.

RESPONSE:

JOpen objects to this Request on the ground that it is argumentative. JOpen further objects to the phrase "company" as vague and ambiguous. Subject to these objections, JOpen denies this Request.

REQUEST FOR ADMISSION NO. 8:

Admit that before February 6, 2023, JOPEN never consulted with any experts on the extent to which the Federal Food Drug and Cosmetics Act (FDCA) applies to the sale of supplements (including botanicals) for human consumption.

RESPONSE:

JOpen objects to this Request on the grounds that it is argumentative to the extent the Request assumes any kratom product that JOpen distributes is a "supplement" and assumes that JOpen had a duty to consult with experts regarding the FDCA. Subject to these objections, JOpen denies this Request.

REQUEST FOR ADMISSION NO. 9:

Admit that JOPEN marketed and sold kratom products for human consumption.

RESPONSE:

Admit.

DATED: December 13, 2024

Respectfully submitted,

By */s/ Gwendolyn C. Payton*

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